

24STCV29484 24STCV29484

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-26

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Case Number: 24STCV29484 Hearing Date: June 26, 2026 Dept: 617

Dept.

617

Date:

6-26-26

Case

#: 24STCV29484

Trial

Date: 8-3-26

CONTINUE TRIAL

MOVING

PARTY: Defendant City of Los Angeles acting by and through the Los Angeles

Department of Water and Power

RESPONDING

PARTY: Plaintiffs, William Stan Spry and Heidi Spry

RELIEF

REQUESTED

Motion

to Continue Trial

SUMMARY

OF ACTION

Plaintiffs

William Stan Spry and Heidi Spry sued Defendant Los Angeles Department of Water and Power after improvements to the road and drainage leading to the Hollywood Reservoir allegedly caused rainwater to be directed, redirected, and to flood toward and into Plaintiffs' property. Plaintiffs assert claims for inverse condemnation, private nuisance, and negligence.

RULING: Granted.

Defendant City

of Los Angeles acting by and through the Los Angeles Department of Water and Power moves to continue the August 3, 2026 trial by 180 days and to continue all trial-related dates and deadlines. It argues good cause exists for a continuance because it will permit Defendant to complete all relevant discovery, resolve discovery disputes, and conduct additional discovery on newly-added parties should its motion to join necessary parties (currently on calendar after trial) be granted. Defendant further claims there is good cause as continuance will not prejudice parties or witnesses and there have been no prior trial continuances. Plaintiffs oppose the motion, citing deficiencies in the notice of motion and contending that Defendant's delay in propounding discovery establishes a lack of good cause for a continuance. They also argue that a continuance allows Defendant to take advantage of its alleged discovery misconduct, which is the subject of pending sanctions motions, assert frivolous new defenses, and prosecute its motion to join irrelevant new parties. Because the Court finds good cause for a continuance, Defendant's motion is granted.

California

Rules of Court, rule 3.1332(c) states:

Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1)

The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2)

The unavailability of a party because of death, illness, or other excusable circumstances;

(3)

The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4)

The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5)

The addition of a new party if:

(A)

The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B)

The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6)

A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7)

A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

Subsection

(d) continues:

In

ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1)

The proximity of the trial date;

(2)

Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3)

The length of the continuance requested;

(4)

The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5)

The prejudice that parties or witnesses will suffer as a result of the continuance;

(6)

If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7)

The court's calendar and the impact of granting a continuance on other pending trials;

(8)

Whether trial counsel is engaged in another trial;

(9)

Whether all parties have stipulated to a continuance;

(10)

Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11)

Any other fact or circumstance relevant to the fair determination of the motion or application.

The

Court first declines to deny the motion based on defects in the notice of motion. Although the notice of motion fails to cite the proper authority for a continuance, instead citing certain inapplicable discovery provisions, the notice clearly states that Defendant is seeking a continuance of trial and the supporting memorandum of points and authorities relies on the correct authority. (See *Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc.* (2020) 56 Cal.App.5th 894, 909 [“An omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought”].) The Court therefore proceeds to the merits of Defendant's motion.

Good

cause exists for a continuance. New counsel was retained on January 16, 2026 after prior counsel retired the same month. [Abbott Decl. ¶¶ 9-10.] Discovery was served on Plaintiff a month later and the instant motion was filed two months thereafter on April 17, 2026. [Id. ¶¶ 4, 11.] Defense counsel is also engaged in another trial beginning on July 20, 2026 which may conflict with the current trial date. [Id. ¶ 17.] There have been no prior trial continuances in the instant action and there is no indication of prejudice to Plaintiffs or any witnesses. Indeed, continuing the matter will permit the parties to complete discovery and resolve outstanding discovery issues as well as allow Plaintiffs' sanctions motions to be heard before trial. The Court declines to use the instant motion to decide the merits of other pending motions. Defendant's motion is therefore granted.

Trial

is continued 180 days to February 1, 2027. All trial deadlines are continued in accordance with the new trial date.

Defendant

to give notice.